KASHRUT COURSE AT TIFERET EYAL

Why Keep Kosher? The Reasons Behind Kashrut

Kashrut Course, Part 1

Series: Kashrut, a six-part course at Tiferet Eyal, Hendon **Shiur:** Part 1 of the six-part Kashrut course, given by Dayan Daniel Kada at Tiferet Eyal, Tuesday 14 May 2019

These notes are based on an automatic transcript of the recording.

Part 1: What Makes Food Kosher? The Nine Main Things

The recording begins as the Rabbi is finishing his list of what a *hechsher* actually has to check. He gave **six main things** and then **three more**:

#	Requirement
1	**The food itself**: a kosher species of animal, bird or fish
2	**Shechita**: correct slaughter
3	**Purging** the meat of forbidden fats and blood
4	Not a **nevelah** or **terefah**: not an animal that would die within the next 12 months
5	**No forbidden mixtures**, above all meat and milk
6	**Bug infestation** in fruit and vegetables
7	**Grape products**
8	**Utensils**: food cooked in non-kosher utensils cannot be eaten
9	**Food cooked by a non-Jew**: most cooked foods are prohibited

There are many other points, he added, and threw out a few words to show it: **chadash**, **terumot and ma'asrot**. All of these are part of what a *hechsher* covers. But once you have "ticked all those nine boxes," you can say the food is kosher and permitted to eat. Several of these items (meat and milk, utensils, cooking by non-Jews, bugs) would each get their own shiur later in the course.

Three categories for tonight

Out of all of this, the Rabbi chose **three main categories of non-kosher food** to explore that evening:

1. **The animals and birds themselves.** What is wrong with rabbit? What is wrong with pork?

2. **Meat and milk** mixed together.
3. **Terefah**: an animal that has not been slaughtered correctly, or that is going to die within 12 months.

Part 2: May We Give Reasons for Mitzvot?

Before giving any reasons, the Rabbi said, we have to establish that searching for reasons is legitimate, and that it must be done with care.

The Rambam: every mitzvah has a reason

In the **Moreh Nevuchim (Guide for the Perplexed), Part 3, Chapter 31**, the Rambam argues against people who think the Torah is so lofty that one should not look for reasons at all, and should treat the whole Torah as unfathomable decrees. That, says the Rambam, is simply wrong. **Every one of the 613 mitzvot, including those we call *chukim*, has a reason**, even if we do not always know it. The Rabbi read the passage:

Every one of the 613 commandments serves to inculcate some truth, to remove some erroneous opinion, to establish proper relations in society, to diminish evil, to train in good manners or to warn against bad habits. All this depends on three things: opinions, morals and social conduct.

It is our duty, the Rambam holds, to probe and understand the reasons, which is why he devotes a whole section of the Guide to them. "We all keep kashrut at different levels, but we all keep kashrut. But why?"

The Sefer HaChinuch: a book for a son on Shabbat afternoons

Following in the Rambam's path is the **Sefer HaChinuch**, the "Book of Education," written in the **13th century in Barcelona**. The author is anonymous and saw the Rambam as his teacher. In his introduction he explains that he wrote it to occupy his son on long summer Shabbat afternoons: rather than waste the time, the boy could go through the mitzvot of each week's parashah and learn their rationale. It runs from the first mitzvah in the Torah, having children, to the last, writing a Sefer Torah.

A *ta'am* is a taste

The Rabbi stressed the limits of the exercise. The Rambam calls these reasons **ta'amim**. A *ta'am* is a reason, but the literal meaning is **a taste**. "We want to make them palatable, in the literal sense." We are giving the mitzvot a flavour. We cannot imagine we will reach the full depth and comprehensive rationale of each mitzvah; that is beyond our grasp.

A relatively new enterprise

Giving reasons for mitzvot is relatively new:

- **The Torah** very rarely gives reasons for its mitzvot.
- **The Gemara** is mostly legal, the ins and outs, not philosophical reasons.
- It became common in **medieval times**, with the Rambam, Rav Saadia Gaon, the Chinuch and others. In places like Spain, where Jews and non-Jews mixed and Christians and Muslims mocked Jewish practice, there was a need to defend the religion and make it understandable. (The Rabbi noted that the Rambam's Thirteen Principles were likewise a response to the Muslim creed of his time, a subject for another day.)

The Torah assumes many things and expects us to understand them. It was the Rambam and those after him who articulated them one by one.

The only two food laws the Torah explains

In the Torah, no reason is given for kashrut: not for meat and milk, not for why a camel is not kosher. We are given **signs**, not reasons. The Gemara also gives none. There are just two exceptions:

1. **The gid hanasheh (sciatic nerve)**: we do not eat it in memory of Yaakov's wrestling with the angel, who injured him there.
2. **Blood**: the Torah says blood is the life of the creature, so eating blood is like eating the creature's life itself.

Part 3: The Rambam's Approach: Kashrut Is Healthy Eating

The Rabbi asked the class what they thought the Rambam gives as the reason for kashrut. The answer is startling: **health**. In **Moreh Nevuchim 3:48**, the Rambam writes:

I maintain that food forbidden by the Torah is unwholesome. There is nothing among the forbidden kinds of food whose injurious character is doubted except pork and fat. But also in these cases the doubt is not justified.

On pork he adds that its habits and food are dirty and loathsome, and that if we were allowed to eat it, "the streets and the houses would be more dirty than any cesspool, as may be seen in the country of the Franks" (referring to the Christians). Forbidden fats, he says, fill a person up and interrupt digestion. **Meat boiled in milk** is "undoubtedly gross food" and makes one overfull.

The **Chinuch** follows the same line and develops it: the body is the vessel for the soul. If you do not look after the body, the soul will not have permanence in this world. The same applies to a **terefah**: an animal that will die within 12 months is diseased, and eating it is physically unhealthy.

The difficulties

The Rabbi admitted he finds this "very, very difficult," and so did many of the Rambam's successors:

- **Is it true?** If you collected the statistics, he doubted you would find that Jews are healthier and live longer than non-Jews.
- **Is that all the Torah is?** To relegate the laws of the Torah to a diet is hard to accept.
- **Rav Yosef Albo's question:** if the Torah is simply giving health guidelines, why command only the Jews? "*Verachamav al kol ma'asav*", Hashem's mercy is on all His creatures. Why not tell the non-Jews as well?

So he turned to the other Rishonim, category by category.

Part 4: Category One: Forbidden Animals

Why does the Torah forbid an animal that lacks split hooves or does not chew the cud?

The Ramban: spiritual health

The **Ramban (Nachmanides)** takes issue with the Rambam. It has nothing to do with physical health, he says, because the Torah introduces these laws with **וְאַנְשֵׁי קֹדֶשׁ תִּהְיוּן לִי**, "you shall be holy people to Me." It is **spiritual health**. The forbidden animals are **predatory**, and all the forbidden birds are **birds of prey**. Eating them instils a **cruel nature**. "You are what you eat."

How can food affect the soul? The Rabbi answered with an analogy: people take tablets and substances that change their mood and psyche. In the same way, according to the Ramban, certain foods can change a person's spiritual nature, essence and identity.

To the best of his knowledge, these are the **only two reasons** given for the forbidden species themselves: the Rambam (physical health) and the Ramban (spiritual health).

Part 5: Category Two: Meat and Milk

Here there are more opinions:

Source	Reason
Sefer HaChinuch	Like **sha'atnez** (wool and linen) and **kilayim** (grafting fruits): two disparate forces in the world that must not be combined
Ramban	**Cruelty**: cooking a kid in the milk of its own mother is cruel
Rashbam (Rashi's grandson)	**Gluttony**: mixing dead meat with the milk that gives life and nourishment to the young is a gluttonous act
Rambam	Unhealthy, but more likely a ban on an **idolatrous practice**

On the Chinuch's comparison to kilayim, the Rabbi mentioned that grafted citrus fruits are the reason some do not say *Shehecheyanu* on them: grafting is something that should not be happening.

On the Ramban: the Torah's words are "do not cook a kid in its mother's milk." The prohibition extends to all meat and milk because, on a wider level, every animal can be seen as a mother and every animal was once someone's young.

The Rambam: an idolatrous rite

The Rambam writes:

Meat boiled in milk is undoubtedly gross food... but I think that most probably it is also prohibited because it is somehow connected with idolatry, forming perhaps part of the service or being used at some festival of the heathen. This I consider the best reason for the prohibition; but as far as I have seen the books on their rites, nothing is mentioned of this custom.

The Rambam studied the idolaters' books and did not find it, but still thought it the best reason.

Mrs Finn's birthday lamb

A colleague from Wembley once pointed the Rabbi to a book called **Palestine Peasantry** by **Elizabeth Anne Finn**, who lived in 19th-century Palestine and kept a diary. For her birthday she asked an Arab *fellah* (peasant) to roast her a lamb. He replied that he would do it, but by their tradition it could only be cooked **together with milk, with *leben***. She asked whether this was not against the law of Moses. Yes, he said, and they did other things too, like **cooking the young in its mother's milk** and **kilayim**, practices that stood in direct contrast to the Torah.

Weaning us off idolatry

The Rambam explains many mitzvot this way: not using a razor on the beard, not rounding the corners of the head, not making tattoos. These were the practices of the idolaters when the Torah was given. One can object that pagans today do not eat meat with milk. But the whole idea of the Torah is **Yichud Hashem**, the unity of God, and **shattering the idols**, not only physical idols but theological ones. Many mitzvot, says the Rambam, serve to take us away from idolatrous practice, and meat and milk may be one of them.

Part 6: Category Three: Terefah

Source	Reason
Rambam	Health: the animal is diseased
Ramban	*Terefah* literally means **torn**, killed by another animal. It has been subjected to cruelty, and eating it breeds cruelty in us
Rav Shimshon Raphael Hirsch (Germany, 19th century)	The Torah says a torn animal is for the **scavengers**. Eating it brings us down to the food of animals. Refraining reminds us of our higher calling

Interim summary

- The word kasher and the nine main things it entails.
- Giving reasons for mitzvot is important, but must be done with caution.
- **Forbidden animals:** physical health (Rambam) or spiritual health (Ramban).
- **Meat and milk:** disparate forces (Chinuch), cruelty (Ramban), gluttony (Rashbam), unhealthy or idolatrous (Rambam).
- **Terefah:** unhealthy, spiritually harmful from cruelty, or the food of scavengers.

Part 7: A Holistic Approach: Four Kinds of Mitzvot

In the last quarter of an hour the Rabbi offered a more holistic approach, based on an idea he had read some years ago in a book by **Dennis Prager**. There are **four purposes** of mitzvot:

1. **Reflexive mitzvot**, which develop the person. *Tefillah* comes from *lehitpallel*, to judge oneself. **Bikkurim**, the first fruits, teach appreciation and gratitude. **Tzitzit** remind us of our duties and identity.
2. **Ethical mitzvot**: murder, theft, perjury, and at a "lower" level charity, caring for the ill, the poor and the weak, and lashon hara. Being good does not happen by itself; the Legislator has to define what good is. "Hitler thought he was doing something very good, ridding the world of vermin." Without a definition of good, a person can end up with a warped understanding of it.
3. **Laws of holiness.** We are body and soul, in constant battle. The two main things we share with the animal kingdom are **eating** and **procreation**, and the Torah sanctifies both. We make a berachah before eating and Birkat HaMazon after, we wash our hands. There are forbidden relationships, and times when even a couple abstain. We also sanctify **time**: Shabbat and the Chagim.
4. **National mitzvot**, which preserve our identity as a people: **matzah**, **maror**, **Tisha b'Av**, **Purim**, **Chanukah**.

Kashrut, the Rabbi argued, contains all four.

1 and 2: Limiting meat, reflexively and ethically

Keeping kosher limits which animals we may eat. The Rabbi previewed the next week's shiur: **Rav Yosef Albo** (15th century) writes that ideally we should not eat meat at all, and **Rav Kook** speaks of this too. Killing animals for our own benefit is cruel, but because of human nature and history, Hashem "as it were changed His mind" and permitted meat. The Torah describes eating meat as a **craving**. The Torah recognises it and says: you may, but in a certain way.

- **Fewer species**: kashrut limits how much and what kind of meat we eat.
- **Ever min hachai**: not eating a limb from a living animal.
- **Shechita** with a sharp knife, not a blunt one, so that there is minimum cruelty.

Why the pig? Green and red lights

Why a pig is forbidden and a lamb permitted may be like asking why green means go and red means stop. You can offer psychological explanations, but when driving we simply know: green is go, red is stop.

The Rabbi brought a fascinating midrash, quoted by the **Ohr HaChaim** on **Vayikra 11**: the Hebrew for pig is **חזיר** (*chazir*), from the root **לחזור**, to return. In the times of Mashiach, the pig will "return" and become permitted. "Now, we're not yet in the times of Mashiach, just in case." What it shows is that, at least according to this midrash, there is nothing intrinsically wrong with the pig. The point is the **limitation**.

Removing the blood: a built-in revulsion

All the blood must be removed. If you want to eat meat, think about the blood that was spilled for it. The Rabbi reflected:

Human beings get together to eat and enjoy each other's company. On what? Something they've killed together. We don't like to think about it whilst we're eating, but if you think about it, it's something crazy.

Human nature needs to be recognised. Meat is allowed, but with limits: on how many animals, on how they are slaughtered so there is no pain, and on the blood, so that there is a revulsion at its shedding. That develops us **reflexively** and protects **animal welfare** ethically.

3: Holiness

Kashrut gives **self-discipline**. We do not eat whatever we want, however we want, like animals. The Rabbi cited the Midrash (Tanchuma): **the mitzvot were given to refine people**, to refine our base instincts and bring holiness into our eating.

4: National identity

When you travel, you ask: is there a community here? Is there kosher food? Kashrut brings you into contact with other Jews.

The Rabbi told a story from his yeshiva days. A group of four or five "irresponsible yeshiva boys" went to **Harrogate in Yorkshire** for Shabbat with very little food. By the long summer Shabbat afternoon they had run out entirely. After Shabbat, what do you do when you are stuck without kosher food? "Find the nearest Chabad." They went to **Chabad in Leeds** and stayed until the early hours of the morning, eating, learning Torah and having a good time together. The fact that they had to eat certain things forced them to connect with the Jewish community around them.

Summary

- Every mitzvah has a reason (Rambam), but what we can offer are ***ta'amim***, tastes, not the full depth.
- The Torah itself explains only two food laws: the **gid hanasheh** and **blood**.
- **Forbidden animals:** physical health (Rambam) or spiritual health, avoiding the traits of predators (Ramban).
- **Meat and milk:** disparate forces (Chinuch), cruelty (Ramban), gluttony (Rashbam), an idolatrous rite (Rambam's preferred reason).
- **Terefah:** disease (Rambam), cruelty (Ramban), the food of scavengers (Rav S. R. Hirsch).
- **Holistically**, kashrut offers four things: **self-development**, **ethical treatment of animals**, **holiness and self-discipline**, and **national identity**.

Not everything adds up, and not everything comes together. But as we've said, it's a *ta'am*. It's a taste, it's a flavour.

The Rabbi's closing thought: next time we sit down to a piece of meat, we should think about the whole process it has been through, and what that process should remind us of: our responsibilities to each other and to the world.

Next week (Tuesday 21 May, 7.45pm): Is veganism compatible with Judaism? The pros and cons of vegetarianism in the Torah.

Watch or listen to this shiur: youtu.be/jcMRNf1Xt2I · More shiurim: rabbikada.com